May 4, 2026

Representative Joe Ciresi
Chair, House Communications &
& Technology Committee
325 Main Capitol Building
P.O. Box 202146
Harrisburg, PA 17120-2146

Representative Jason Ortitay
Republican Chair, House Communications
& Technology Committee
B15 Main Capitol Building
P.O. Box 202046
Harrisburg, PA 17120-2046

Representative Chris Pielli
115B East Wing
P.O. Box 202156
Harrisburg, PA 17120-2156

RE: Letter in Opposition to Pennsylvania HB 95

Dear Chair Ciresi, Republican Chair Ortitay, and Representative Pielli:

We respectfully oppose the committee amendment working draft of HB 95 ("HB 95") and we offer this letter to express our non-exhaustive list of concerns with the proposed legislation.[1] We and the companies we represent, many of whom do substantial business in Pennsylvania, strongly believe consumers deserve meaningful protections supported by reasonable laws and industry policies. However, as currently drafted, HB 95 would mandate prescriptive disclosures in advertisements featuring "synthetic advertising content" and explicitly allow for a private right of action. While we support transparency and responsible use of emerging technologies, HB 95 would create significant legal, economic, and operational concerns for businesses, advertisers, advertising agencies, content creators, and the broader media ecosystem. Accordingly, we ask you to decline to advance the bill as drafted out of the House Communications & Technology Committee ("Committee").

I. HB 95 would establish an overly broad definition of "synthetic advertising content."

HB 95's definition of "synthetic advertising content" is overly broad.[2] The bill would cover images, videos, or audio clips used in an advertisement that have been significantly modified or generated by artificial intelligence ("AI"), and then would require clear and conspicuous disclosure whenever such content is used in an advertisement.[3] As drafted, the required disclosures would not be limited to fully AI-generated content. "Synthetic advertising content" could be broad enough to sweep in modified content, and therefore risks covering routine and widely accepted creative tools such as CGI, voice modulation, or stylized characters that have consistently been used in various stages of advertising production for decades in both online and offline advertisements such as billboards and traditional TV commercials. We urge the Committee to clarify the definition of "synthetic advertising content" to ensure it applies only

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[1] Pennsylvania HB 95 (2025-2026 Reg. Sess.), located here (hereinafter, "HB 95").
[2] HB 95 § 2.
[3] HB 95 § 3(a).

to *fully* AI-generated images, video, or audio clips content, and not to routine enhancements or stylized content.

II. HB 95 does not contain a clear enough "reasonableness" standard to ensure consumers are protected from real, material risks.

As drafted, the bill does not contain a clear reasonableness standard to the disclosure requirement for advertisements containing synthetic advertising content. In the definition of "synthetic advertising content" there is a limitation for content that "materially alters the representation or a reasonable consumer's perception" of the goods or services being advertised. However, such a standard is not targeted enough to require disclosures only when nondisclosure could mislead consumers. The definition should be clarified to cover synthetic advertising content that materially alters the representation or a reasonable consumer's perception *in a way that alters a purchasing decision*. The Committee should craft a "reasonableness" standard that avoids overlabeling content which employs routine creative techniques (such as CGI, visual effects, or voice modulation) that audiences generally recognize as artistic enhancements rather than deceptive representations. By focusing on situations with a real risk of consumer confusion, a targeted reasonableness test reduces compliance burdens and overlabeling, preserves creative freedom, and would strengthen the bill's practical application.

III. Enforcement solely by the Attorney General would provide more meaningful outcomes to consumers.

HB 95's enforcement provisions allow for a private right of action.[4] HB 95 should be updated to clarify that it does not create a private right of action under any law. Instead, enforcement should be vested with the Attorney General ("AG") alone. Such an enforcement structure would lead to stronger outcomes for Pennsylvania residents while better enabling businesses to allocate resources to developing processes, procedures, and plans to facilitate compliance with the bill's novel requirements. AG enforcement, instead of a private right of action, is in the best interests of consumers and businesses alike.

A private right of action in HB 95 would create a complex and flawed compliance system without tangible benefits for consumers. In addition, allowing private actions will flood Pennsylvania's courts with frivolous lawsuits driven by opportunistic trial lawyers searching for technical violations, rather than focusing on actual consumer harm.[5] Private right of action provisions are completely divorced from any connection to actual consumer harm and provide consumers little by way of protection from detrimental data practices.

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[4] HB 95 § 3(c).

[5] A select few attorneys benefit disproportionately from private right of action enforcement mechanisms in a way that dwarfs the benefits that accrue to the consumers who are the basis for the claims. For example, a study of 3,121 private actions under the Telephone Consumer Protection Act ("TCPA") showed that approximately 60 percent of TCPA lawsuits were brought by just forty-four law firms. Amounts paid out to consumers under such lawsuits proved to be insignificant, as only 4 to 8 percent of eligible claim members made themselves available for compensation from the settlement funds. U.S. Chamber Institute for Legal Reform, *TCPA Litigation Sprawl* at 2, 4, 11-15 (Aug. 2017), located here.

Additionally, a private right of action would have a chilling effect on Pennsylvania's economy by creating the threat of steep and unforeseeable costs for advertisers that are good actors but inadvertently fail to conform to technical provisions of law. The reality is that many digital advertisers in Pennsylvania and other states are small businesses. These are home-based businesses, family farms, local creative agencies, and a myriad of other small and mid-sized companies who power local economies. [6] Private litigant enforcement provisions do not effectively address consumer protection concerns or deter undesired business conduct. They expose businesses, including the small businesses who rely on the web to reach their consumers, to extraordinary and potentially enterprise-threatening costs for technical violations of law rather than drive systemic and helpful changes to business practices. A private right of action would also encumber businesses' attempts to innovate by threatening companies with expensive litigation costs, especially if those companies are visionaries striving to develop transformative new technologies. The threat of an expensive lawsuit may force smaller companies to agree to settle claims against them, even if they are convinced they are without merit.[7]

Beyond the staggering cost to Pennsylvania businesses, the resulting snarl of litigation could create a chaotic and inconsistent enforcement framework with conflicting requirements based on differing court outcomes. Overall, a private right of action would serve as a windfall to the plaintiff's bar without focusing on the business practices that actually harm consumers. We therefore encourage the Committee to remove the private right of action from HB 95 and vest enforcement authority with the AG alone.

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[6] *See* Digital Advertising Alliance, *Summit Snapshot: Where Tech of All Sizes Meet: Data and Privacy — The Small Business Imperative* (Aug. 2025), located here.

[7] For instance, in the early 2000s, private actions under California's Unfair Competition Law ("UCL") "launched an unending attack on businesses all over the state." American Tort Reform Foundation, *State Consumer Protection Laws Unhinged: It's Time to Restore Sanity to the Litigation* at 8 (2003), located here. Consumers brought suits against homebuilders for abbreviating "APR" instead of spelling out "Annual Percentage Rate" in advertisements and sued travel agents for not posting their phone numbers on websites, in addition to initiating myriad other frivolous lawsuits. These lawsuits disproportionately impacted small businesses, ultimately resulting in citizens voting to pass Proposition 64 in 2004 to stem the abuse of the state's broad private right of action under the UCL. *Id.*

We respectfully ask the Committee not to advance HB 95 as proposed and would welcome the opportunity to engage further and work with you to amend HB 95 in ways that would benefit Pennsylvania businesses and consumers alike.

Thank you in advance for your consideration of this letter.

Sincerely,

Christopher Oswald
EVP for Law, Ethics & Govt. Relations
Association of National Advertisers
202-296-1883

Alison Pepper
EVP, Government Relations & Sustainability
American Association of Advertising Agencies, 4As
202-355-4564

Clark Rector
Executive VP–Government Affairs
American Advertising Federation
202-898-0089

Lou Mastria
CEO
Digital Advertising Alliance
347-770-0322

CC: Members of the Pennsylvania House Communications & Technology Committee